

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS,

-----X
DONNA POWELL,

Index No.:

Date Purchased:

SUMMONS

-Against-

Plaintiff,

Plaintiff designates
Kings County as the place of
trial.

THE CITY OF NEW YORK, "JOHN" MODESTO,
"JOHN" ORTEGA, "JOHN DOE" NYPD OFFICERS #1-
10, and "JOHN DOE" FDNY OFFICERS #1-10,

The basis of venue is:
Plaintiff's Residence

Plaintiff's Residence:
1361 Nostrand Avenue
Brooklyn, NY 11226

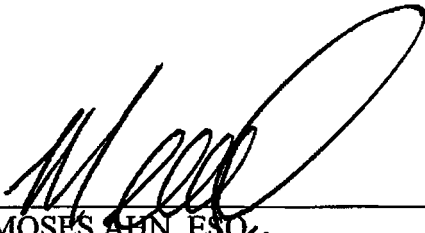
Defendants,
-----X

County of Kings

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 18, 2018



MOSES AHN, ESQ.

LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC

Attorneys for Plaintiff

DONNA POWELL

Financial Square at 32 Old Slip - 8th FL
New York, New York 10005

(212) 962-1020

Our File No. 26954

TO:

THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

“JOHN” MODESTO
One Police Plaza
New York, NY 10038

“JOHN” ORTEGA
One Police Plaza
New York, NY 10038

“JOHN DOE” FDNY OFFICERS #1-10
9 Metrotech
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS,

-----X
DONNA POWELL,

COMPLAINT

JURY TRIAL
DEMANDED

Plaintiff,

-Against-

THE CITY OF NEW YORK, "JOHN" MODESTO,
"JOHN ORTEGA", "JOHN DOE" NYPD OFFICERS #1-10,
and "JOHN DOE" FDNY OFFICERS #1-10,

Defendants,
-----X

Plaintiff, DONNA POWELL, by and through her attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, as and for her Complaint, respectfully alleges, upon
information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that Plaintiff's county of residence is and has been Bronx County in the State of New York.

NOTICE OF CLAIM

5. Plaintiff, DONNA POWELL, filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the accrual of her claims.
6. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.
7. Plaintiff, pursuant to General Municipal Law 50(h) was produced for statutory hearings.
8. This action was commenced within one year and ninety days from the date the pendent claims herein accrued.

JURY DEMAND

9. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

10. Plaintiff, DONNA POWELL, is, and has been, at all relevant times, a resident of the County of Kings, City and State of New York.
11. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
12. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department and Fire Department, duly authorized public authorities and/or departments, authorized to perform all functions of a police department and fire department, acting under the direction and supervision of the aforementioned municipal corporation, THE

CITY OF NEW YORK.

13. At all times hereinafter mentioned, the individually named defendants, "JOHN" MODESTO, "JOHN ORTEGA", "JOHN DOE" NYPD OFFICERS #1-10, and "JOHN DOE" FDNY OFFICERS #1-10, were duly sworn members of said departments and were acting under the supervision of said department and according to their official duties. Defendants are sued herein in their official and individual capacities.
14. At all times hereinafter mentioned, the individually named defendants, "JOHN" MODESTO, "JOHN ORTEGA", "JOHN DOE" NYPD OFFICERS #1-10, and "JOHN DOE" FDNY OFFICERS #1-10, were duly sworn members of said department and was acting under the supervision of said department and according to their official duties. Defendants "JOHN" MODESTO, "JOHN ORTEGA", "JOHN DOE" NYPD OFFICERS #1-10, and "JOHN DOE" FDNY OFFICERS #1-10 are sued herein in their official and individual capacities.
15. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
16. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
17. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW

YORK.

FACTS

18. On September 19, 2017 at approximately 8:38 a.m., Plaintiff DONNA POWELL, was lawfully located inside of 1361 Nostrand Avenue, #2B, in the County of Kings, City and State of New York.
19. At this time, Defendants JOHN DOES 1-10 and several other members of the New York City Police Department arrived at the location on duty and in uniform.
20. Plaintiff was not engaged in any unlawful or suspicious activity.
21. Despite the absence of any evidence of wrongdoing on the part of the Plaintiff, Defendants "JOHN" MODESTA, "JOHN" ORTEGA, and other "JOHN DOE" OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT approached the Plaintiff, and pinned her down to the ground placing all their weight on Plaintiff and placed her in handcuffs.
22. Plaintiff repeatedly informed the Defendants she was in pain from the Defendant's weight being on Plaintiff's body.
23. Plaintiff furthermore informed the Defendants she was pregnant.
24. Defendants ignored Plaintiff's requests for help.
25. Plaintiff continues to experience permanent injuries from the excessive force used by Defendants in this matter.
26. Following her release from custody, Plaintiff sought medical treatment for the injuries she sustained at the hands of the Defendants.
27. There was no justification or basis for the use of any force against the Plaintiff, much less

the level of force described herein.

28. Each of the Defendants used an unjustified level force and used excessive force on the Plaintiff, or otherwise failed to intervene in the use of such force despite the opportunity to do so.
29. At no time on September 19, 2017, did Plaintiff commit any crime or violation of law.
30. At no time on September 2, 2017, did any of the Defendants possess probable cause to take Plaintiff into custody or to order Plaintiff's arrest.
31. At no time on September 19, 2017, did any of the Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
32. At no time did any of the Defendants, despite observing fellow officers violating the Plaintiff's constitutional rights, attempt to stop their fellow officers from continuing to violate the Plaintiff's rights, despite having a clear opportunity to do so.
33. Plaintiff was transported to Kings County Hospital, where she was held based on false allegations which Defendants knew were false and/or the basis of improper identification procedures.
34. As a result of the foregoing, Plaintiff DONNA POWELL sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of her constitutional rights.
35. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
36. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to

the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

37. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
38. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF AGAINST
INDIVIDUALLY NAMED DEFENDANTS
AND THE CITY OF NEW YORK FOR
FALSE ARREST AND FALSE
IMPRISONMENT UNDER STATE LAW AND
FEDERAL LAW, PURSUANT TO 42 U.S.C. §
1983.

40. Plaintiff DONNA POWELL repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
41. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
42. As a result of the foregoing, Plaintiff's liberty was restricted, she was put in fear for her

safety, and she was falsely taken into custody without probable cause.

**SECOND CLAIM FOR RELIEF AGAINST
INDIVIDUALLY NAMED DEFENDANTS
AND THE CITY OF NEW YORK FOR
ASSAULT AND BATTERY UNDER STATE
LAW AND FOR EXCESSIVE FORCE UNDER
42 U.S.C. § 1983**

43. Plaintiff, DONNA POWELL repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
44. As a result of the Defendants' conduct, Plaintiff was subject to assault and batter, and excessive force, as described herein.
45. As a result of Defendants' conduct, Plaintiff, DONNA POWELL was subjected to excessive force by the Defendants intentionally causing her pains in her stomach, while pregnant, as described herein.
46. As a result of Defendants' conduct, Plaintiff, DONNA POWELL was subjected to excessive force by the Defendants intentionally causing Plaintiff the loss of her unborn child restraining her in a matter that was unnecessary, as described herein.
47. As a result of the Defendants' conduct, the Plaintiff was subject to a level of force by the Defendants in excess of what was reasonable under the circumstances.
48. As a result of the foregoing, the Plaintiff's liberty was restricted, and he was put in fear for her physical safety without probable cause or any legal justification, and she was physically injured.

**THIRD CLAIM FOR RELIEF AGAINST
INDIVIDUALLY NAMED DEFENDANTS (42
U.S.C. § 1983: FAILURE TO INTERVENE)**

49. Plaintiff, DONNA POWELL, repeats, reiterates, and realleges each and every allegation

set forth above with the same force and effect as if fully set forth herein and at length.

50. That defendants' failure to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitles plaintiff to recover monetary damages from these defendants under 42 U.S.C. § 1983.

**FOURTH CLAIM FOR RELIEF AGAINST
THE CITY OF NEW YORK (NEGLIGENT
HIRING, TRAINING AND RETENTION
UNDER STATE LAW)**

51. Plaintiff, DONNA POWELL, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
52. That the aforesaid conduct by all Defendants and the injuries to plaintiff were the result of negligence by the City of New York in its hiring, training, and retention of Defendants.

**FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42
U.S.C. § 1983**

53. Plaintiff, DONNA POWELL, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
54. Defendants arrested, searched, and incarcerated plaintiff, DONNA POWELL, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate her constitutional rights.
55. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

56. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
57. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
58. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
59. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, DONNA

POWELL.

60. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
61. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
62. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
63. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
64. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
65. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
December 18, 2018



MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
DONNA POWELL
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020
Our File No. 26954

VERIFICATION

MOSES AHN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiffs in the action within. I have read the annexed

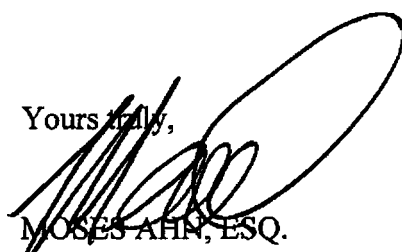
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Dated: New York, New York
December 18, 2018

Yours truly,



MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020